

REQUEST TO THE TRIAL COURT FOR AN ORDER OF EXPUNCTION AFTER ACQUITTAL (ART. 55A.201)

USE THIS PAGE ONLY IF YOU ARE STILL INSIDE THE 30-DAY WINDOW. Article 55A.201 says the order of expunction shall be entered NOT LATER THAN THE 30TH DAY AFTER THE DATE OF ACQUITTAL, on the request of the acquitted person after notice to the state. If more than 30 days have passed, or the court did not act, use the verified ex parte petition in this packet instead.

IN THE COURT OF COUNTY, TEXAS

Cause No.:

REQUEST OF JORDAN AVERY REYES FOR AN ORDER OF EXPUNCTION UNDER ARTICLE 55A.201

1. Jordan Avery Reyes was tried and ACQUITTED by this Court of the offence identified below. Under Tex. Code Crim. Proc. art. 55A.002 a person tried and acquitted by the trial court is ENTITLED to expunction of all records and files relating to the arrest.

Offence acquitted of, as the judgment states it:

.....

Date of acquittal (found not guilty):

.....

Date of arrest:

Arresting agency:

2. This request is made under art. 55A.201, which provides that the order shall be entered not later than the 30th day after the date of acquittal, on the request of the acquitted person AFTER NOTICE TO THE STATE.

3. The information article 55A.253 requires accompanies this request, in the Information Package attached.

4. A copy of the judgment of acquittal accompanies this request. Article 55A.301 requires the judgment to be attached to and incorporated by reference in the order.

5. WHO PREPARES THE ORDER. Article 55A.201 assigns preparation of the order to the acquitted person's ATTORNEY where the person was represented, and otherwise to the ATTORNEY REPRESENTING THE STATE. This packet therefore does not supply a proposed order on this branch, and the request asks the Court to direct its preparation as the article provides.

6. ON THE FEE. Article 102.0061(c) REQUIRES the filing fee to be waived where the expunction relates to an acquittal other than one described by article 55A.151 and the petition is filed not later than the 30th

day after the acquittal. This request is made within that period.

WHEREFORE the requesting party asks the Court to enter an order of expunction of all records and files relating to the arrest.

DATE SIGNATURE

PRINTED NAME: Jordan Avery Reyes

(You sign and date this when you actually make the request. Nothing on this page is signed or dated for you.)

Route: obligation:unit:TX:tx_exp_acquittal:tx-acquittal-in-window-request ;
obligation:unit:TX:tx_exp_acquittal:tx-acquittal-out-of-window-petition

INFORMATION PACKAGE REQUIRED BY ARTICLE 55A.253

Article 55A.201 requires the requesting party to provide the information an article 55A.253 petition requires. This page is that information, in the order the statute asks for it. It accompanies the request to the trial court.

Full name: Jordan Avery Reyes

Date of birth: 1994-04-17

Address: 42 Live Oak Street, Austin, TX 78702

Sex and race, as your records state them:

.....

(Your sex and race are not filled in. The platform does not collect either and will not guess them onto a court filing.)

Driver's licence number:

Social Security number:

Offence charged:

.....

Date of arrest:

Arresting agency:

Case number and the court that handled it, if a case was filed:

.....

TRACKING INCIDENT NUMBER (TRN):

(The TRN comes from your DPS criminal history record. The incident number it carries has to go on the order, so get the criminal history before you file.)

THE AGENCY AND ENTITY LIST - THIS IS THE PART THAT COSTS MONEY.

Article 55A.253(c) requires EACH DISTRICT CLERK to compile and maintain, on the clerk's own website, a list of the agencies and entities that hold arrest records, WITH E-MAIL ADDRESSES. Ask for it by name; the clerk is not always expecting the question.

Why it matters to your wallet: article 55A.254(e) forbids the clerk charging anything to transmit the petition or the notice of hearing ELECTRONICALLY, and article 55A.254(f) requires the clerk to charge \$25 FOR EACH LISTED ENTITY UNABLE TO RECEIVE AN ELECTRONIC TRANSMISSION. The same structure repeats at the order stage under article 55A.351(b-2) and (b-3). So every paper-only agency you name is a direct \$25 cost to you, twice over.

List every agency and entity likely to hold records of this arrest, DEDuplicated, using the clerk's list and its e-mail addresses wherever they exist:

.....
.....
.....
.....

PRIVATE ENTITIES, LISTED SEPARATELY. Do not merge these into the agency list above:

.....
.....

YOU DO NOT HAVE TO CHASE THE FBI. The court gives a copy of the petition and the notice of hearing to each official, agency or entity named, OTHER THAN central federal depositories, and on receipt DPS notifies the central federal depositories itself.

Route: obligation:unit:TX:tx_exp_acquittal:tx-acquittal-in-window-request ;
obligation:unit:TX:tx_exp_acquittal:tx-acquittal-out-of-window-petition

VERIFIED EX PARTE PETITION FOR EXPUNCTION AFTER ACQUITTAL (ART. 55A.251)

USE THIS PAGE IF THE 30-DAY WINDOW HAS CLOSED, OR THE COURT DID NOT ACT. Where the article 55A.201 window has passed, the person falls back to an ordinary verified ex parte petition under article 55A.251, which lists article 55A.002 among the qualifying entitlements.

NOTE WHERE THIS ONE GOES. The verified ex parte petition is filed with the DISTRICT CLERK OF THE COUNTY OF ARREST, or of the alleged offence. That may not be the court that acquitted you.

IN THE COURT OF COUNTY, TEXAS

Cause No.:

County of arrest or of the alleged offence:

EX PARTE JORDAN AVERY REYES

VERIFIED PETITION FOR EXPUNCTION

1. Petitioner Jordan Avery Reyes petitions for expunction of all records and files relating to the arrest identified below, under Tex. Code Crim. Proc. art. 55A.251.

Date of birth: 1994-04-17

Address: 42 Live Oak Street, Austin, TX 78702

2. ENTITLEMENT. Petitioner was tried and ACQUITTED by the trial court. Under art. 55A.002 a person tried and acquitted by the trial court is entitled to expunction, and art. 55A.251 lists art. 55A.002 among the qualifying entitlements.

Offence acquitted of, as the judgment states it:

.....

Date of acquittal (found not guilty):

.....

3. THE ARTICLE 55A.151 BAR. Article 55A.151 bars relief where the acquitted offence arose out of a criminal episode, as defined by Penal Code Sec. 3.01, and the person was convicted of or remains subject to prosecution for at least one other offence in that episode. Petitioner's statement on that point - not written for you, because it depends on your whole record and on any matter still pending:

.....

.....

4. THE INFORMATION ARTICLE 55A.253 REQUIRES accompanies this petition, in the Information Package in this packet, including the deduplicated agency and entity list taken from the district clerk's published list and the separately listed private entities.

5. A copy of the judgment of acquittal accompanies this petition. Article 55A.301 requires it to be attached to and incorporated by reference in the order.

WHEREFORE Petitioner asks the Court to enter an order of expunction of all records and files relating to the arrest.

VERIFICATION. Article 55A.253 requires this petition to be VERIFIED. County practice differs on whether an unsworn declaration satisfies it, so BOTH blocks are printed and you use the one your clerk accepts. Ask the clerk which.

EITHER - NOTARIAL VERIFICATION:

STATE OF TEXAS, COUNTY OF

I, Jordan Avery Reyes, being duly sworn, state that I have read the foregoing petition and that the matters stated in it are true and correct.

.....
Jordan Avery Reyes, Petitioner

SUBSCRIBED AND SWORN TO before me on

.....
Notary Public, State of Texas

OR - UNSWORN DECLARATION UNDER PENALTY OF PERJURY:

My name is Jordan Avery Reyes. My date of birth is 1994-04-17. My address is 42 Live Oak Street, Austin, TX 78702. I declare under penalty of perjury that the foregoing is true and correct.

Executed on

.....
Jordan Avery Reyes, Petitioner

(You sign and date whichever block your clerk accepts. Nothing on this page is signed or dated for you.)

Route: obligation:unit:TX:tx_exp_acquittal:tx-acquittal-in-window-request ;
obligation:unit:TX:tx_exp_acquittal:tx-acquittal-out-of-window-petition

PROPOSED ORDER OF EXPUNCTION

USE THIS PAGE ON THE OUT-OF-WINDOW BRANCH ONLY. On the in-window branch article 55A.201 assigns preparation of the order to the acquitted person's ATTORNEY where they were represented, and otherwise to the ATTORNEY REPRESENTING THE STATE - so on that branch you do not prepare it.

THIS DOCUMENT IS A PROPOSED ORDER. It is unexecuted. It records no finding this Court has made and nothing in it asserts that the Court has acted.

IN THE COURT OF COUNTY, TEXAS

Cause No.:

EX PARTE JORDAN AVERY REYES

ORDER OF EXPUNCTION

On the verified petition of Jordan Avery Reyes, the Court FINDS (findings to be made by the Court):

.....
.....

Offence acquitted of:

.....

Date of acquittal:

Tracking incident number (TRN):

IT IS ORDERED that all records and files relating to the arrest identified above be EXPUNGED.

The judgment of acquittal is attached to and INCORPORATED BY REFERENCE in this order, as article 55A.301 requires.

SIGNED on

.....

JUDGE PRESIDING

(The findings, the date and the judge's signature are the Court's and are left blank.)

Route: obligation:unit:TX:tx_exp_acquittal:tx-acquittal-in-window-request ;
obligation:unit:TX:tx_exp_acquittal:tx-acquittal-out-of-window-petition

NOTICE: THIS DOCUMENT CONTAINS SENSITIVE DATA
AVISO: ESTE DOCUMENTO CONTIENE INFORMACIÓN
CONFIDENCIAL



Statement of Inability to Afford Payment of Court Costs or an Appeal Bond

Declaración sobre Incapacidad de Pago de Costas de Tribunal o de una Fianza de Apelación

Cause Number
Número de Caso

The Clerk's office will fill in the Cause Number when you file this form.

El Secretario del Tribunal anotará el Número de Caso cuando usted presente este formulario.

v.

Copy information listed at the top left of the petition here.

Copie aquí la información ubicada en la parte superior izquierda del escrito de la demanda.

Copy information listed at the top right of the petition here.

Copie aquí la información ubicada en la parte superior derecha del escrito de la demanda.

Court Number
Número del Tribunal

_____, Texas
County
Condado

- ☐ District Court
Tribunal de Distrito
- ☐ County Court
Tribunal del Condado
- ☐ County Court at Law
Tribunal Estatutario
- ☐ Justice Court
Juzgado de Paz
- ☐ Probate Court
Juzgado Sucesorio

1. Your Information / Su Información

- My full legal name is / Mi nombre legal completo es

Jordan Avery Reyes

First Middle Last / Nombre de Pila Segundo Nombre Apellido

- My date of birth is / Mi fecha de nacimiento es

1994-04-17

Month Day Year / Mes Día Año

- My address is / Mi dirección es

Home / Domicilio 42 Live Oak Street, Austin, TX 78702

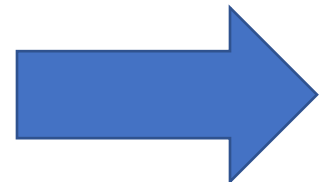
Mailing / Dirección Postal

- My phone number / Mi número telefónico 512-555-0142

- My email I check often / Mi correo electrónico que reviso con frecuencia

jordan.reyes@example.org

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Pase a la siguiente página

2. About My Dependents / Mis Dependientes

"The people who depend on me financially are listed below." **Use initials only for children under 18.** If needed, attach a separate piece of paper to list more dependents.

"Las personas a continuación dependen económicamente de mí." **Use iniciales para los menores de 18 años** y, si es necesario, anexe una hoja por separado para enumerar a todos sus dependientes.

Name Nombre	Age Edad	Relationship to me Parentesco Conmigo

3. Are you represented by Legal Aid? ¿Está siendo representado por alguna entidad de asistencia legal?

Check only one box. Seleccione solo una casilla.

☐ I am being represented in this case for free by an attorney who works for a legal aid provider or who received my case through a legal aid provider. I have attached the certificate the legal aid provider gave me as "Exhibit: Legal Aid Certificate."

Me está representando gratuitamente un abogado que trabaja para una entidad de asistencia legal o que recibió mi caso de una entidad de asistencia legal. El certificado que la entidad de asistencia legal me entregó lo adjunto bajo el título, "Anexo: Certificado de Asistencia Legal."

or / o

☐ I am not represented by legal aid.

No me está representando ninguna entidad de asistencia legal.



4. Public Benefits / Beneficios de Asistencia Pública

- Do you or any of your dependents receive public benefits?
¿Recibe usted o sus dependientes beneficios de asistencia pública?

☐ Yes / *Sí*

☐ No / *No*

- If you answered yes, check all that apply and attach proof to this form, such as a copy of an eligibility form or check.

Si respondió con un Sí, marque todas las casillas que apliquen y adjunte a este formulario comprobantes, tales como una copia de la carta autorizando que reciba estos beneficios o una copia del cheque que recibe.

☐ Food stamps/SNAP
Cupones de comida/SNAP

☐ TANF

☐ Medicaid

☐ CHIP

☐ SSI/SSDI

☐ WIC

☐ Lifeline

☐ Public Housing or Section 8 Housing
Asistencia de Vivienda / Programa de Vivienda bajo Sección 8

☐ Low-Income Home Energy Assistance
Asistencia con Energía Eléctrica

☐ Community Care via HHS
Ayuda Comunitaria bajo HHS

☐ LIS in Medicare ("Extra Help")
Subsidio Adicional de Medicare bajo el Programa LIS

☐ Needs-based VA Pension
Pensión para Veteranos de Guerra en función a necesidades

☐ Child Care Assistance under Child Care and Development Block Grant
Asistencia con Guardería bajo el Programa CCDBG

☐ County Assistance, County Health Care, or General Assistance (GA)
Asistencia del Condado, Asistencia Médica del Condado, o Asistencia General (GA)

☐ Other / *Otros beneficios*

☐ Other / *Otros beneficios*



5. What are your monthly income sources? ¿Cuáles son sus fuentes de ingresos mensuales?

➤ My **take-home** pay is \$_____ in monthly wages.

Mi **pago neto** es \$_____ en sueldo mensual.

➤ I work as a _____ (your job title) for _____ (your employer).

Yo trabajo como _____ (título de su puesto) para
_____ (compañía o jefe).

➤ \$_____ is my total **monthly** income / son mis ingresos totales **al mes**.

These are my income sources. **Estas son mis fuentes de ingresos.**

➤ \$_____ in unemployment / en beneficios de desempleo.

I have been unemployed since _____ (date).

He estado desempleado desde _____ (indique fecha).

➤ \$_____ in public benefits / en beneficios de Asistencia Pública.

➤ \$_____ from people in my household other than my spouse / de ingresos de otras personas en mi hogar que no son de mi cónyuge.

➤ \$_____ from retirement or pension / de jubilación o pensión.

➤ \$_____ from tips or bonus / de propinas o bonos.

➤ \$_____ from disability / de discapacidad.

➤ \$_____ from worker's comp / de compensación al trabajador.

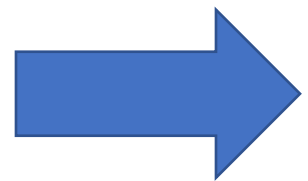
➤ \$_____ from social security / de seguro social.



- \$_____ from military housing / de vivienda militar.
- \$_____ from dividends, interest, or royalties / de dividendos, intereses, o regalías.
- \$_____ from child or spousal support / de manutención de menores o manutención conyugal recibida.
- Answer only if your spouse is not your opponent. Responda tan sólo si su ccónyuge no es parte contraria en esta causa legal.\$_____ from my spouse's income / de ingresos de mi cónyuge.
- \$_____ from other jobs/sources of income / de otros trabajos/ fuentes de ingresos.

Describe / describa:

Go to next page



Pase a la siguiente página

6. What is the value of your assets or property? ¿Cuál es el valor de sus bienes o propiedades?

My property includes: Mis bienes incluyen:	Value / Valor The value is the amount the item would sell for less the amount you still owe on it, if anything. El valor de sus bienes es la cantidad por la que la propiedad o pertenencia se vendería, menos el monto que aún se adeuda, si lo hubiera.
➤ Cash Dinero en efectivo	\$
➤ Bank accounts, other financial assets Cuentas bancarias, otros bienes financieros	
	\$
	\$
	\$
➤ Cars and boats (make and year) Automóviles, lanchas (modelo y año)	
	\$
	\$
	\$
➤ Other property like jewelry, stocks, land, a second house. (Do not list your homestead.) Otros bienes como joyas, acciones, terrenos, una segunda casa. (No indique su hogar familiar.)	
	\$
	\$
	\$
Total Value of Property Valor Total de Sus Bienes	\$



**7. What are your monthly expenses that are not deducted from your paycheck?
¿Cuáles son sus gastos mensuales que no son descontados de su cheque de sueldo?**

My monthly expenses are: Mis gastos mensuales son:	Amount Cantidad
➤ Rent/house payments; maintenance Alquiler/hipoteca; mantenimiento de casa	\$
➤ Food and household supplies Alimentos y artículos para el hogar	\$
➤ Utilities and telephone Luz, gas, agua y teléfono	\$
➤ Clothing and laundry Ropa y lavado de ropa	\$
➤ Medical and dental expenses Gastos médicos y dentales	\$
➤ Insurance (life, health, auto, etc.) Seguros (de vida, médico, de automóvil etc.)	\$
➤ School and childcare Escuelas y guarderías	\$
➤ Transportation, auto repair, gas Transportación, reparaciones de automóviles, gasolina	\$
➤ Child/Spousal support Manutención a Menores/Manutención Conyugal	\$
➤ Debt payments to (list): Pagos por deudas hechas a (indíquelos):	
	\$
	\$
➤ Wages withheld by court order Sueldo retenido por orden judicial	\$
➤ Other expenses (list): Otros gastos (indíquelos):	
	\$
	\$
Total Monthly Expenses Gastos Totales Mensuales	\$



8. Are there debts or other facts explaining your financial situation?
¿Hay deudas u otros factores que expliquen su situación económica?

My debts include (list debt and amount owed):

Mis duedas incluyen (indique deuda y la cantidad que debe):

	\$
	\$
	\$
	\$
	\$

If you want the court to consider other facts, such as unusual medical expenses, family emergencies, etc., attach another page to this form labeled "Exhibit: Additional Supporting Facts."

Si usted desea que el tribunal considere otros factores, tales como gastos médicos excepcionales, emergencias familiares, etc., adjunte al formulario otra hoja con esta información y bajo el título, "Anexo: Información Adicional de Apoyo."

9. Ability to Pay Court Costs. Declaración sobre su Habilidad de Pagar Costas de Tribunal

Check only one box. Seleccione tan solo una casilla.

- ☐ I cannot afford to pay court costs. No puedo pagar las costas de tribunal.
- ☐ I cannot furnish an appeal bond or pay a cash deposit to appeal a justice court decision, and I cannot afford to pay court costs.

No puedo aportar una fianza de apelación ni pagar un depósito en efectivo para apelar la decisión judicial de un magistrado, y no puedo pagar costas de tribunal.

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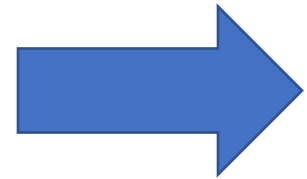
Pase a la siguiente página

10. Declaration/Affidavit. Declaración Escrita Bajo Juramento.

Fill out **only one** box. If you fill out the Declaration, you will not need to sign the form in front of a notary public. If you do not want to list your address for privacy or safety concerns, take the form and photo identification, and fill out the Affidavit box in front of a notary public.

Llene tan **solo una** opción. Si usted llena la Declaración, no necesitará firmar el formulario ante un notario. Si usted no quiere que aparezca su domicilio en el documento para conservar su privacidad o por motivos de su seguridad, lleve el formulario y una identificación con fotografía y llene la sección de la Declaración Escrita Bajo Juramento ante un Notario.

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Pase a la siguiente página

Option 1 / Opción 1

Declaration: I declare under penalty of perjury that the foregoing is true and correct.

Declaración: Yo declaro bajo pena de perjurio que la información a continuación es correcta y verdadera.

➤ My name is / Mi nombre es

Jordan Avery Reyes

➤ My date of birth is / Mi fecha de nacimiento es

____/____/____

➤ My address is / Mi domicilio es

42 Live Oak Street, Austin, TX 78702

Street, city, zip, country

Calle y número, ciudad, estado, código postal, país

➤

Signature
Firma

➤

12/15/2022

Date (month, day, year)
Fecha (mes, día, año)

➤

County, state
Condado, estado

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Pase a la siguiente página

Option 2 / Opción 2

Affidavit: I swear under penalty of perjury that the foregoing is true and correct.

Declaración Escrita Bajo Juramento: Yo juro bajo pena de perjurio, que lo que precede es correcto y verdadero.

You fill out this section.

Usted llena esta sección.

- Jordan Avery Reyes

Your printed name
Su nombre en letra de molde

- _____
Your signature
Su firma

The notary fills out this section.

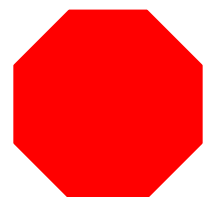
El Notario llena esta sección.

➤ _____

Subscribed before me this day of
Juramentado y suscrito ante mí el día de hoy del mes de

_____, 20____

NOTARY
NOTARIO



WHICH ROUTE YOU ARE ON, WHAT IT COSTS, AND WHAT HAPPENS NEXT

Prepared for: Jordan Avery Reyes

YOU WERE ACQUITTED, AND THAT MEANS YOU ARE ENTITLED. Article 55A.002 says a person tried and ACQUITTED by the trial court is ENTITLED to expunction of all records and files relating to the arrest. This is not a discretionary route.

THE COURT WAS SUPPOSED TO TELL YOU. On acquittal the trial court SHALL advise the person of the right to expunction. Many people are never told, which is why this packet exists.

FIRST QUESTION: HOW LONG AGO WERE YOU ACQUITTED?

WITHIN 30 DAYS - THE IN-WINDOW BRANCH. Article 55A.201 says the order shall be entered NOT LATER THAN THE 30TH DAY AFTER THE DATE OF ACQUITTAL, on your request after notice to the state. Use the REQUEST TO THE TRIAL COURT and the INFORMATION PACKAGE in this packet. Do not prepare the order: art. 55A.201 assigns that to your attorney if you had one, and otherwise to the attorney representing the state.

MORE THAN 30 DAYS, OR THE COURT DID NOT ACT - THE OUT-OF-WINDOW BRANCH. You fall back to an ordinary VERIFIED EX PARTE PETITION under art. 55A.251, which lists art. 55A.002 among the qualifying entitlements. Use the PETITION and the PROPOSED ORDER in this packet.

AND NOTE WHERE THAT ONE GOES: the verified ex parte petition is filed with the DISTRICT CLERK OF THE COUNTY OF ARREST, or of the alleged offence. That may not be the court that acquitted you.

WHAT IT COSTS. This changed recently and the old numbers are no longer reliable.

Article 102.006, the old expunction fee statute, was REPEALED by S.B. 1667 effective 1 September 2025, temporarily re-added by H.B. 16 of the 89th Legislature's 2nd Called Session with a built-in expiry, and permanently replaced by article 102.0061 effective 1 January 2026. IF YOU HAVE READ THAT EXPUNCTION COSTS \$250 TO \$500, THAT RANGE IS FROM THE REPEALED STATUTE AND THIS PACKET WILL NOT REPEAT IT.

Under art. 102.0061(a) a DISTRICT COURT charges the fee that applies to filing an ex parte petition in a civil action in district court - the ordinary county civil filing fee, which is not a flat statutory amount. Under (b) a JUSTICE COURT or MUNICIPAL COURT OF RECORD charges a flat \$100.

ON THE IN-WINDOW BRANCH THE FEE MUST BE WAIVED. Article 102.0061(c) REQUIRES the fee to be waived where the expunction relates to an acquittal other than one described by article 55A.151 AND the petition is filed not later than the 30th day after the acquittal. If you are inside the window and the article 55A.151 bar does not apply to you, you should not be paying a filing fee at all. Say so at the counter, and cite art. 102.0061(c).

Article 102.0061(d) separately requires waiver of the district-court fee where the entitlement arises under article 55A.053(a)(2)(A) or (B).

THE COST THAT IS ACTUALLY IN YOUR CONTROL: \$25 PER PAPER-ONLY AGENCY. Article 55A.254(e) forbids the clerk charging anything to transmit the petition or notice of hearing ELECTRONICALLY. Article 55A.254(f) requires the clerk to charge \$25 FOR EACH LISTED ENTITY UNABLE TO RECEIVE AN ELECTRONIC TRANSMISSION - and the same structure repeats at the order stage under art. 55A.351(b-2) and (b-3). So the number of paper-only agencies you name is a direct dollar cost to you, and it lands twice.

WHICH IS WHY THE CLERK'S LIST MATTERS. Article 55A.253(c) requires each district clerk to compile and maintain, on the clerk's own website, a list of agencies and entities WITH E-MAIL ADDRESSES. Ask for it by name - the clerk is not always expecting the question - and use the e-mail addresses. Deduplicate your list. Every duplicate and every needless paper-only entry costs you \$25 twice.

IF YOU STILL CANNOT AFFORD IT. Fill in the STATEMENT OF INABILITY TO AFFORD PAYMENT OF COURT COSTS in this packet, on the statewide bilingual form the Supreme Court of Texas approved in Misc. Docket No. 22-9090. Rule 145 requires the clerk to make that form available WITHOUT CHARGE AND WITHOUT YOUR HAVING TO ASK. It is sworn under penalty of perjury: fill it from your own records, not from memory.

YOU DO NOT SERVE ANYONE. THE CLERK DOES. The clerk sends the petition and the notice of hearing by certified mail return receipt requested, or by secure e-mail, electronic transmission or fax. A state or local agency with a listed e-mail address MUST accept electronic service. A certificate of service is included only where local practice requires you to serve the prosecutor directly - ask the clerk.

THE HEARING. The court sets a hearing NOT EARLIER THAN THE 30TH DAY after the petition is filed, and gives a copy of the petition and the notice of hearing to each official, agency or entity listed, OTHER THAN central federal depositories.

AND YOU DO NOT CHASE THE FBI. On receipt, DPS notifies the central federal depositories itself.

VERIFICATION. Article 55A.253 requires the petition to be verified. Whether an unsworn declaration satisfies that is accepted by some clerks and not others, which is why BOTH a notarial block and an unsworn declaration are printed. Ask your clerk which they take.

WHEN TO STOP AND GET HELP INSTEAD.

- The acquitted offence arose out of a CRIMINAL EPISODE as defined by Penal Code Sec. 3.01 and you were convicted of, or remain subject to prosecution for, at least one other offence in that episode. Article 55A.151 bars relief on that ground, and it also removes the mandatory fee waiver in art. 102.0061(c).
- You are not sure whether the criminal-episode bar reaches you.
- The 30-day window has closed and you are not sure which county the arrest belongs to.
- The clerk cannot produce the art. 55A.253(c) agency list.
- You are not a United States citizen.

DOCUMENTS TO GET FIRST, AND WHO HAS THEM.

- Your Texas DPS criminal history record - the Texas Department of Public Safety Crime Records Service, following DPS form CR-63, which is an instruction sheet rather than a form to complete. THE TRN IT CARRIES HAS TO GO ON THE ORDER.

- The district clerk's published list of agencies and e-mail addresses - the district clerk of the county where the petition will be filed, under art. 55A.253(c).

- The court file and cause number - the district or county clerk of the county of arrest or prosecution. Some counties also want a certified disposition attached; ask when you call about the agency list.

- The judgment of acquittal - the clerk of the trial court. Article 55A.301 requires it to be attached to and incorporated by reference in the order.

Route: obligation:unit:TX:tx_exp_acquittal:tx-acquittal-in-window-request ;
obligation:unit:TX:tx_exp_acquittal:tx-acquittal-out-of-window-petition